

24VECV01822 24VECV01822

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-18

Motion: DEFENDANTS LG BUILDERS, INC. AND LIOR GOV'S MOTION TO VACATE AND SET ASIDE THE CLERK'S ENTRY OF DEFAULT

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Case Number: 24VECV01822 Hearing Date: August 18, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MELODY CAMPBELL, an individual,

Plaintiff,

vs.

VITTORIO REMODELING & CONSTRUCTION, INC., a California corporation; LG BUILDERS, INC., a California corporation; LIOR GOV, an individual; and DOES 1-20, inclusive,

Defendants.

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CASE NO: 24VECV01822

[TENTATIVE] ORDER RE: DEFENDANTS LG BUILDERS, INC. AND LIOR GOV'S MOTION TO VACATE AND SET ASIDE THE CLERK'S ENTRY OF DEFAULT

Dept. U

8:30 a.m.

August 18, 2026

BACKGROUND

This case is a construction defect action filed by Plaintiff Melody Campbell against Defendants Vittorio Remodeling & Construction, Inc. ("Vittorio"); LG Builders, Inc. ("LG"); and Lior Gov ("Gov").

On April 22, 2024, Plaintiff filed her complaint against Defendants, alleging: (1) negligence against LG and Gov; (2) breach of contract against LG and Gov; (3) breach of implied warranty against LG and Gov; (4) negligence per se against LG and Gov; (5) negligence against Vittorio; (6) breach of contract against Vittorio; (7) breach of implied warranty against Vittorio; and (8) negligence per se against Vittorio.

On November 18, 2024, Plaintiff filed proofs of service documenting personal service of the summons and complaint on LG and Gov by leaving papers with Gov on November 7, 2024, at 2:43 P.M. at the address 7633 Varna Avenue, Suite H in North Hollywood.

On February 3, 2025, the Clerk entered default as to LG and Gov.

On August 11, 2025, the Clerk entered default as to Vittorio.

On February 27, 2026, LG and Gov (hereafter, "Defendants") filed their motion to set aside the Clerk's entry of default.

On April 16, 2026, Plaintiff filed her opposition brief.

On April 29, 2026, the Court issued its tentative ruling denying the motion but continued the hearing to give Defendants time to file a reply brief.

On August 11, 2026, Defendants filed their reply brief.

RULING

The motion is denied.

LEGAL STANDARD

“When service of a summons has not resulted in actual notice to a party in time to defend the action and a default...has been entered against him in the action, he may serve and file a notice of motion to set aside the default...and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default... has been entered.” Code Civ. Proc., § 473.5 (a).

DISCUSSION

Defendants waited beyond the 180 days available to seek relief from default under Code of Civil Procedure section 473.5.

Defendants move for an order vacating the Clerk's entry of default. Plaintiff opposes Defendants' motion on grounds that Defendants waited beyond the 180 days available to seek relief from default set forth under Code of Civil Procedure section 473.5. Under that section, a defaulted party must seek relief from entry of default within 180 days of actual notice that default had been entered. See Code Civ. Proc., § 473.5 (a).

Defendants appeared in this action through counsel at a case management conference on July 10, 2025. Defense counsel confirms that she was aware of this case as early as July 2025. (See Levy decl., ¶ 4.) Defendants admit they had actual knowledge that their defaults had been entered before July 10, 2025. Defendants did not file their motion for relief from default until February 27, 2026, more than seven months later. Per Code of Civil Procedure section 473.5, Defendants are not entitled to relief from entry of default because they did not file their motion within 180 days of their having actual notice.

As to the timing of their motion to vacate default, Defendants newly argue in the reply brief that their counsel was “lulled into believing she need not bring any motion to set aside or calendar this, because [Plaintiff's counsel] promised her that he would sign a stipulation to set aside the Default and produce evidence and pictures of the highly contested damages” and then failed to do so. (Reply, p. 3:16-20.) Defendants fail to state when precisely Plaintiff's counsel promised to stipulate to set aside the default. Defendants present no email or other communication from Plaintiff's counsel regarding setting aside the default. Without documentary evidence showing Plaintiff's counsel promised to set aside the default in exchange for defense counsel waiting to file a motion for relief from default, the Court rejects Defendants' position that the record in this case shows evidence of extrinsic fraud.

The motion is untimely.

The weight of the evidence shows Defendants were properly served at the Varna office address on November 7, 2024, by Nehoray leaving papers with Gov personally.

Defendants' motion is supported by Gov's declaration stating that he first learned of this case when "visiting a potential customer, who searched us on public records, she said that a search of my company states that there was a lawsuit filed against LG, yet she said she could not see a case number." Gov states that he contacted his attorney to research the issue on the same day, and his attorney advised him that a lawsuit had been filed. Gov fails to specify when these events occurred. (Gov decl., ¶¶ 2-3.)

Gov attests that since before November 2024, his office address has been 7633 Varna Avenue, Suite H in North Hollywood. Gov attests that on November 7, 2024, the date documented in Plaintiff's proofs of service, he was not at the office at 2:43 P.M., the time service was purportedly effected. Rather, Gov attests that he was on a project site on Bassett Avenue. (Gov decl., ¶¶ 4-9.) Gov's account of his whereabouts on November 7, 2024, is corroborated by the declaration testimony of a foreman working for LG at the time. (See Gonzalez decl., ¶¶ 1-5.)

Gov attests that the person at the Varna office on that date was Laura Harris, who could not have reasonably been mistaken for Gov, a male. Gov attests that he never received service at the Varna office address or otherwise. (Gov decl., ¶¶ 4-9.) Defendants also submit Ms. Harris' declaration, wherein Ms. Harris attests that she did not receive papers on November 7, 2024. (Harris decl., ¶¶ 1-5.) The Court finds the defense declarations highly suspicious. Few people could recall with precision where they were on a date 18 months earlier.

In opposition to the motion, Plaintiff presents testimony by Sam Nehoray ("Nehoray"), the registered process server who served Defendants on November 7, 2024. Nehoray attests that Gov was, in fact, personally served at the Varna office address on November 7, 2024, as reflected in Plaintiff's proofs of service and contrary to Gov's representations. (Nehoray decl., ¶¶ 1-7.) In its tentative ruling dated April 29, 2026, the Court determined that based on the evidence it appeared Defendants simply ignored the summons and complaint. The Court accepts the truth of the facts as stated in Nehoray's declaration. Defendants were properly served at the Varna office address on November 7, 2024, by Nehoray leaving papers with Gov personally.

As to Defendants' position that the proofs of service improperly omitted the suite number at the Varna office address, Defendants are simply incorrect. Both proofs of service filed on November 18, 2024, document that service occurred at Suite H. This matches Gov's declaration testimony, which also identifies Suite H as the proper suite number for the Varna office address. (See Gov decl., ¶ 5.)

In their reply brief filed on August 11, 2026, which Defendants submitted after the Court already issued its original tentative ruling, Defendants provide no additional evidence to support their position that service was defective. Nor do Defendants directly respond to the defects in their evidence identified in the Court's earlier tentative ruling. Defendants merely restate their position that "it is clear that process was never properly effectuated, personal jurisdiction over either of the defendants via this erroneous service, was never obtained" (Reply, p. 2:14-15) without providing additional evidence or reasoning.

In sum, Defendants were personally served with notice of the filing of this action on November 7, 2024. They admit they had actual notice of the default as of July 10, 2025. The Court declines to reward Defendants' calculated inaction. Defendants' motion was not filed within 180 days of Defendants' actual notice of their defaults as required under Code of Civil Procedure section 473.5. Defendants are not entitled to relief from entry of default. The motion is denied.

CONCLUSION

Defendants LG Builders, Inc. and Lior Gov's motion to vacate and set aside the Clerk's entries of their defaults dated February 3, 2025, is DENIED.

Plaintiff Melody Campbell is ORDERED to give notice.

DATED: August 18, 2026

Lee S. Arian

Judge of the Superior Court